CAUSE NO. D-1-GN-24-001694

STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY *Plaintiff*	§	**IN THE DISTRICT COURT OF**
v.	§	**419TH JUDICIAL DISTRICT**
CATASTROPHIC SOLUTIONS LLC D/B/A HAIL SPECIALISTS *Defendant*	§	**TRAVIS COUNTY, TEXAS**

DEFENDANT'S ORIGINAL ANSWER AND COUNTERCLAIM

TO THE HONORABLE JUDGE OF SAID COURT:

COMES NOW, Defendant/Counter-Plaintiff, Catastrophic Solutions LLC d/b/a Hail Specialists, hereinafter "Defendant." Defendant herein files its original answer and counterclaim in the above entitled and numbered cause of action and would respectfully show the Court as follows:

I.
GENERAL DENIAL

1. As authorized by Rule 92 of the Texas Rules of Civil Procedure, Defendant denies each and every allegation contained in Plaintiff's Original Petition and all amendments or supplements thereto, and demands strict proof thereof by a preponderance of the evidence of all Plaintiff's allegations.

II.
AFFIRMATIVE DEFENSES

2. Pleading further, Defendant avers that to the extent Plaintiff failed to mitigate its damages as required by law, any award must be reduced by Plaintiff's failure in this regard.

III.
COUNTERCLAIM: QUANTUM MERUIT

3. Pleading further, Defendant provided services or materials to Plaintiff, who accepted the services or materials, under such circumstances as would reasonably provide notice to Plaintiff that Defendant expected to be paid.

IV.
RIGHT TO AMEND

4. Defendant respectfully reserves the right to amend this Answer and Counter-Claims to Plaintiff's allegations after it has had an opportunity to more closely investigate the claims, as is its right and privilege under the Texas Rules of Civil Procedure and the laws of the State of Texas.

V.
RULE 193.7 NOTICE

5. Defendant hereby gives notice of intent to utilize items produced in discovery in the trial of this matter and the authenticity of said items is self-proven as per TRCP 193.7.

VI.
DESIGNATED EMAIL FOR SERVICE

6. Defendant hereby notifies all parties that the designated email for service for all matters including but not limited to discovery, motions, notices, and pleadings is: eserve@hlalawfirm.com.

VII.
JURY TRIAL

7. Defendant hereby respectfully requests a jury trial.

VIII.
REQUIRED DISCLOSURES

8. Pursuant to Texas Rule of Civil Procedure 194, you are required to disclose, within 30 days of filing of this answer, the information and material described in Rule 194.

WHEREFORE, PREMISES CONSIDERED, Defendant prays that after due proceedings, judgment be rendered that Plaintiff take nothing by its lawsuit, and that Court award Defendant all relief to which it is entitled in law or in equity.

Respectfully submitted,

HUSAIN LAW + ASSOCIATES, P.C.

By: /s/ Derek Mueller
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COUNSEL FOR DEFENDANT/COUNTER-PLAINTIFF

CERTIFICATE OF SERVICE

I certify that on April 18, 2024, a true and correct copy of the foregoing document was served in accordance with Texas Rule of Civil Procedure 21a, by electronic court filing, on the following counsel of record or parties:

All known counsel of record

/s/ Derek Mueller
Derek Mueller